

Court No. - 19

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3860 of 2018

Applicant :- M/S. Bansal Agro Farm And Another

Opposite Party :- Pradeep Kumar Agrawal, Superintending Engineer And Another

Counsel for Applicant :- Vashishtha Tiwari

Hon'ble Manoj Kumar Gupta,J.

Counsel for the applicant is permitted to serve a copy of the contempt application upon Sri Shrawan Kumar Tripathi, learned counsel who represented the opposite parties in Writ proceedings to enable him to obtain instructions from the opposite parties as regards allegation of non compliance.

Put up as fresh on 17.8.2018.

Counsel for the applicant shall also inform him in writing about the next date fixed in the instant proceedings.

(Manoj Kumar Gupta, J)

Order Date :- 31.7.2018

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Counsel for Applicant :- Vashishtha Tiwari

Hon'ble Manoj Kumar Gupta,J.

Counsel for the opposite party states that order of the Writ Court has already been complied. He has also placed on record an order passed on 10.08.2018 by Executive Engineer deciding the representation dated 26.03.2018.

Counsel for the applicant seeks time to obtain instructions from the applicant in this regard.

Put up as fresh on 30.08.2018 showing the name of Sri Sravan Kumar Tripathi as counsel for the opposite party.

(Manoj Kumar Gupta, J.)

Order Date :- 18.8.2018

Darpan Sharma

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Applicant :- M/S. Bansal Agro Farm And Another

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Counsel for Applicant :- Vashishtha Tiwari

Counsel for Opposite Party :- Shrawan Kumar Tripathi

Hon'ble Manoj Kumar Gupta, J.

By order dated 22.03.2018 in Writ-C No. 9161 of 2018 filed by the applicant, this Court directed the applicants to deposit a lump sum amount of Rs. 5 Lacs within one month and thereafter, raise dispute in accordance with Clause 6.5 of the Electricity Supply Code, 2005, with further direction to the Competent Authority to decide the same within next three weeks. In the meantime, the recovery of balance amount in pursuance of the citation impugned before the Writ Court, was kept in abeyance.

Learned counsel for the opposite party has placed on record an order dated 10.08.2018 passed by Executive Engineer deciding the claim of the applicants.

Counsel for the applicants tried to contend that the claim has not been decided in a proper manner and various issues, which were specifically raised, have not been dealt with.

Be that as it may, since decision in compliance of the direction issued by the Writ Court has already been taken and therefore this Court is not inclined to proceed any further in the instant matter, but leaves it open to the applicants to challenge the decision in appropriate proceedings.

The instant contempt application stands disposed of with the above observations.

(Manoj Kumar Gupta, J.)

Order Date :- 30.8.2018

Darpan Sharma